

EQUIPMENT LEASE AGREEMENT



Quire Press reference QP-LSE-0114. Two pages, both to be signed.

This lease is made on the sixth day of January between Hollow Ridge Machine Company, of 114 Ferrule Lane, Marchpane (the Lessor), and Quire Press, of 9 Kettle Yard, Marchpane (the Lessee). The parties agree as follows.

1. **Equipment.** The Lessor leases to the Lessee one Vandercook No. 4 cylinder proof press, serial number 4-2187, together with one set of gauge pins, two form rollers, one trip lever assembly and the original crank handle (the Equipment). The Equipment is leased as a single unit and no part of it may be separated from the rest without the written consent of the Lessor.
2. **Term.** The term of this lease begins on the sixth day of January and continues for twenty four consecutive months, unless ended earlier under clause eleven. If the Lessee keeps the Equipment after the term ends without a new agreement, the lease continues month to month on the same terms and either party may end it on thirty days written notice.
3. **Rent.** The Lessee shall pay four hundred and twenty five dollars on the first working day of each month, without demand and without set off. Rent unpaid ten days after it falls due carries a late charge of one and a half percent of the outstanding amount for each month or part month it remains unpaid.
4. **Delivery and installation.** The Lessor shall deliver the Equipment to the Lessee's workshop and shall level, pack and test the press on a floor prepared by the Lessee to carry not less than two hundred pounds per square foot. The Lessee shall give the Lessor's carrier clear access on the delivery day and shall bear the cost of any hoist, ramp or removal of a door frame.
5. **Use and care.** The Lessee shall use the Equipment only for printing from type, photopolymer and engraved plates of a height not exceeding standard type height. The Lessee shall not print from unshielded metal furniture, shall not exceed the manufacturer's stated impression, and shall keep the bed, cylinder bearers and rails free of dried ink, wash solvent and abrasive dust.
6. **Maintenance.** The Lessee shall oil the Equipment weekly at every point marked on the lubrication chart affixed to the press, shall replace the form roller coverings when they harden past forty five durometer, and shall keep a written maintenance log open to the Lessor on request. Repairs to the cylinder, the gearing or the impression mechanism shall be carried out only by a technician approved in writing by the Lessor.
7. **Alterations.** The Lessee shall make no alteration to the Equipment. Bearer tape, packing and tympan are consumables and are not alterations. Any fitting added to the Equipment becomes part of it on installation and shall be left in place at the end of the term unless the Lessor requires its removal.
8. **Location and access.** The Equipment shall be kept at the Lessee's workshop at 9 Kettle Yard and shall not be moved to any other address without fourteen days written notice to the Lessor. The Lessor may inspect the Equipment twice in any twelve month period, at a reasonable hour and on three working days notice, and the Lessee shall give the Lessor's inspector sight of the maintenance log.
9. **Insurance.** The Lessee shall keep the Equipment insured for its full replacement value of eighteen thousand dollars against fire, water, theft and transit, with the Lessor named as loss payee, and shall provide a certificate of that insurance within fourteen days of delivery and on each renewal.

Initials

EQUIPMENT LEASE AGREEMENT, CONTINUED



10. **Loss and damage.** The Lessee carries the risk of loss or damage to the Equipment from delivery until it is collected. Damage beyond fair wear shall be made good at the Lessee's cost. Fair wear includes roller coverings, tympan, grippers and the paint of the feed board; it does not include a cracked bed, a scored cylinder or a stripped gear.
11. **Ownership.** The Equipment remains the property of the Lessor at all times. The Lessee shall not sell, pledge, sublet or lend the Equipment, shall keep it free of every lien, and shall display the Lessor's identification plate where it can be read without moving the press.
12. **Default and remedies.** If the Lessee fails to pay rent within twenty days of its due date, breaches any other term and does not cure the breach within thirty days of written notice, or becomes insolvent, the Lessor may end this lease and retake the Equipment, entering the workshop during ordinary working hours for that purpose, and may recover the rent then unpaid together with the cost of removal.
13. **Return.** At the end of the term the Lessee shall clean the Equipment, remove all packing and tympan, apply a light protective oil, and make the Equipment available for collection during ordinary working hours on a date agreed in writing. The Lessee shall bear the cost of any hoist or rigging required to remove the press.
14. **Notices.** Notices under this lease shall be in writing and shall be delivered by hand or sent by recorded post to the address of the receiving party given below, and shall be treated as received on the second working day after posting.
15. **Entire agreement.** This lease is the entire agreement between the parties about the Equipment and replaces every prior discussion, quotation and understanding. It may be varied only by a written document signed by both parties.
16. **Severance and waiver.** If any clause of this lease is held to be unenforceable, the rest continues in force. A delay by either party in enforcing a term is not a waiver of that term, and a waiver given once does not carry to any later breach.

SIGNED BY THE PARTIES

Each party signs above the rule and prints the date below it.

Lessee
for Quire Press

Lessor
for Hollow Ridge Machine Company

Date

One executed copy to be held by each party.

Initials